

Sangam Kumar @ Bhulla vs The State Of Bihar on 26 July, 2023

Author: Chandra Shekhar Jha

Bench: Chandra Shekhar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.39106 of 2023
Arising Out of PS. Case No.-308 Year-2022 Thana- SAMASTIPUR District-
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SANGAM KUMAR @ BHULLA Son of Late Sukhalal Paswan R/V-
Keluara, P.S.- Kalyanpur, District - Samastipur.

Versus

The State of Bihar.

... .. Opposite Party/s

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Appearance :

For the Petitioner/s : Mr.Ajay Kumar, Advocate
For the Opposite Party/s : Mr.Akbar Ali, APP

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CORAM: HONOURABLE MR. JUSTICE CHANDRA SHEKHAR JHA
ORAL ORDER

2 26-07-2023

Heard learned counsel appearing on behalf of the petitioner and learned counsel appearing on behalf of the State.

2. Let the defect(s), if any, be removed within a period of four weeks from today.

3. The petitioner seeks bail in connection with Samastipur (Town) P.S. Case No. 308 of 2022 registered for the offence under Section 394 of the Indian Penal Code and Section 27 of the Arms Act.

4. The accused/petitioner is not named in the F.I.R. and is in custody since 13.02.2023.

5. The allegation against the petitioner is to commit robbery and while committing so taken away cash of Rs. 57,000/- which was in possession of the brother of informant at the time of occurrence.

Patna High Court CR. MISC. No.39106 of 2023(2) dt.26-07-2023

6. Learned Counsel appearing on behalf of the petitioner submitted that the name of petitioner surfaced during the course of investigation on the basis of self confession, while he was apprehended in Waris Nagar (Mathurapur O.P.) P.S. Case No. 317/2022, in furtherance of which no incriminating

material recovered/surfaced as to connect petitioner prima facie with the present occurrence of robbery. It is further submitted that petitioner not put on TIP as yet. While concluding the argument, it is submitted that petitioner found involved in four more criminal cases, where he is on bail, and moreover, investigation of this case is completed, for which charge-sheet has been submitted, as such, there is no chance of tampering with the evidence.

7. Learned APP, opposes the prayer of bail.

8. Considering the facts and circumstances as mentioned above and by taking note of the fact as save and except suspicion arises out of self confession, nothing incriminating appears against this petitioner to connect him prima facie with the present occurrence of robbery, coupled with the fact that charge-sheet has already submitted, where petitioner is in custody since 13.02.2023, accordingly, petitioner above named, is directed to be released on bail in Patna High Court CR. MISC. No.39106 of 2023(2) dt.26-07-2023 connection with Samastipur (Town) P.S. Case No. 308 of 2022 on furnishing bail bond of Rs.10,000/- (Rupees Ten Thousand) with two sureties of the like amount each to the satisfaction of learned C.J.M., Samastipur/concerned Court, subject to the conditions as mentioned under Section 437(3) of the Cr.P.C.

(Chandra Shekhar Jha, J) veena/-

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